



DEPARTMENT OF AGRICULTURE

Plant Industry Division

RULES PERTAINING TO THE PEST CONTROL ACT INSPECTIONS AND FEDERAL AGREEMENTS

8 CCR 1203-14

[Editor's Notes follow the text of the rules at the end of this CCR Document.]

STATEMENT OF BASIS AND PURPOSE

The rules are adopted pursuant to the Pest Control Act, §§ 35-4-111, 113 and 116, C.R.S. (1995) and HB 96-1018.

The purposes of these rules are to define the inspection requirements pertaining to certificates of inspection issued pursuant to § 35-4-111, to conduct inspections and monitor compliance with the federal/state agreement concerning post-entry quarantine as set forth in § 35-4-113 and to recover the actual costs of the State pursuant to that agreement.

Factual issues encountered when developing these rules include:

A post-entry quarantine is required by the Federal "Plant Quarantine Act of 1912," 7 USC 154, as amended, and the rules and regulations thereto, 7 CFR 319.37, promulgated by the U. S. Department of Agriculture, Animal and Plant Health Inspection Service, Plant Protection and Quarantine ("APHIS"). APHIS has developed a Postentry Quarantine Agreement (PPQ Form 546) to be executed by the importer of plant products. The Colorado Department of Agriculture ("Department") and APHIS will enter into a Memorandum of Understanding, outlining the roles and responsibilities of the Department in inspecting and monitoring compliance with the post-entry quarantine.

1.00 Inspections and Certificates Pursuant to § 35-4-111

A. Definitions:

1. "Commissioner" means the Commissioner of Agriculture.
2. "Inspector" means the Commissioner or an employee of the Colorado Department of Agriculture.

B. Inspection Requirements

The following inspection requirements shall be met prior to issuance by the Commissioner of Agriculture of a certificate and prior to release of inspected crops, plant material or other articles:

1. The inspected crops, plant material or other articles shall be free from pests, as defined in § 35-4-102(6), C.R.S. (1995).
2. The owner or bailee who requested an inspection shall allow the inspector right of entry to any premises, land, buildings, or other places of business where inspected crops, plant material or other articles are growing, were grown or are stored, as set forth in § 35-4-112, C.R.S. (1995).

2.00 Post-Entry Quarantine Pursuant to § 35-4-113

A. Definitions:

1. "Agreement" means the post-entry quarantine growing agreement identified in § 35-4-113 which is PPQ Form 546, the Agreement for Postentry Quarantine as developed by the U. S. Department of Agriculture, Animal and Plant Health Inspection Service, Plant Protection and Quarantine.
2. "Inspector" means the Commissioner of Agriculture or an employee of the Colorado Department of Agriculture.
3. "Grower" means one who has executed an Agreement or the owner of Material at the specified growing site.
4. "Growing site" is the actual location where Material will be grown.
5. "Material" means the plant or plants specified in the Agreement or for which an Agreement is required.

B. Inspection of Growing Site

The Grower shall permit the inspector to have access to the Growing site for inspection during regular business hours.

C. Cost of the Inspection

1. The fees for inspection shall be posted at the Department of Agriculture, Plant Industry Division in Lakewood, Colorado.
2. The Grower shall pay the fees for inspection within 30 days after billing.

Editor's Notes

History